

DOWN QUARK SYSTEMS, LLC AND SUNNYSIDE
DIGITAL, INC.,

Complainants,

v.

ZIM AMERICAN INTEGRATED SHIPPING
SERVICES CO., LLC; ZIM INTEGRATED SHIPPING
SERVICES, LTD.; AND PORT OF HOUSTON
AUTHORITY OF HARRIS COUNTY, TEXAS,

Respondents.

Respondents ZIM American Integrated Shipping Services Co., LLC and ZIM Integrated Shipping Services, Ltd. (collectively, “ZIM” or “Respondents”), through and by their undersigned counsel, respectfully submit this Motion for Enlargement of Time in accordance with 46 C.F.R. § 502.102. This motion is timely filed at least seven (7) days before the current deadline, Monday, July 6, 2026. In accordance with 46 C.F.R. § 502.71, Counsel for ZIM conferred with Counsel for Complainants Down Quark Systems, LLC and Sunnyside Digital, Inc. on this subject motion, who advised that Complainants consent to this requested extension. Counsel for ZIM also conferred with Counsel for Respondent Port of Houston Authority of Harris County, Texas, who advised of their consent to this requested extension.

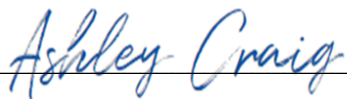
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including with respect to a network of relevant entities and different claims of potential violations of the U.S. Shipping Act, as amended. Given that there are various core issues to address, Respondents and counsel require additional time to review the voluminous records pertaining to this matter and prepare a comprehensive response to the Complaint served on May 26, 2026, which spans sixty-four (64) pages. Moreover, this matter is related to two active federal lawsuits at the U.S. District Court for the Southern District of New York and the U.S. District Court for the Southern District of Texas and was also previously the subject of a Charge Complaint, which has since been dismissed and is no longer pending before the Commission. The Respondents continue to devote time, resources, and personnel to this matter and related litigation. Given that the Complaint is lengthy and raises complicated facts and issues and ZIM has recently withdrawn and substituted counsel, the requested deadline would provide necessary time for Respondents and counsel to prepare complete and meaningful responses. Based on these facts, there is good cause for an enlargement of time.

For the foregoing reasons, Respondents respectfully request an order granting an extension of the deadline through Wednesday, August 5, 2026, for Respondents to file their answer to the Complaint.

Dated this 29th day of June 2026.

Respectfully submitted,



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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that I have this day served the foregoing document upon all interested persons and parties by mailing a copy to each such person via electronic mail to the following email addresses:

Federal Maritime Commission

Office of the Secretary (Secretary@fmc.gov)

Office of Administrative Law Judges (judges@fmc.gov)

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Dated at Washington, DC, this 29th day of June 2026.



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